

HOUSE No. 936

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle M. DuBois

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting public drinking water by further regulating solid waste disposal facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>1/17/2025</i>

HOUSE No. 936

By Representative DuBois of Brockton, a petition (accompanied by bill, House, No. 936) of Michelle M. DuBois for legislation to further regulate the building or expansion of solid waste disposal facilities. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 788 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting public drinking water by further regulating solid waste disposal facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 150A of chapter 111 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting after the second paragraph, on line 37, the
3 following paragraph:-

4 No site shall be assigned as a place for a new facility or for the expansion of an existing
5 facility if the site is located within a zone of 400 feet of: (1) a public water supply well or well
6 field; (2) that area of an aquifer which: (i) contributes water to a to a well under recharge and
7 pumping conditions that allow safe yield of the well for 180 days without any natural recharge
8 occurring, and (ii) is bounded by the groundwater divides which result from pumping the well
9 and by contact of the edge of the aquifer with less permeable materials; or (3) that area of an
10 aquifer which contributes water to a spring under naturally flowing conditions. Such zone may

11 include streams or lakes that act as recharge boundaries. Such zone shall be considered to extend
12 up-gradient to its point of intersection with prevailing hydrogeologic boundaries.

13 SECTION 2. The department of environmental protection may promulgate rules and
14 regulations necessary to carry out the requirements of this act.